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Case Name: THE VILLALOBOS LIVING TRUST, dated January 9, 2019

Case No.: 22PR192748

INTRODUCTION

On June 22, 2022, Petitioners Maria Esther Gonzalez, Maria Teresa Villalobos, Rogelio Villalobos, Ismael Villalobos Ramos, Maria Concepcion Villalobos Ramos, Antonia Villalobos Ramos and Jorge Odilon Villalobos (collectively, “Petitioners”) initiated this action by filing a petition to invalidate the Villalobos Living Trust dated January 9, 2019. Petitioners are the siblings of Decedent trustor Juan Manuel Villalobos (“Decedent”) who are not beneficiaries under the trust. They contend that two of their other siblings Respondents San Juana Villalobos and Jose De Jesus Villalobos (collectively, “Respondents”), who are both trustees and beneficiaries of the trust, procured the trust by undue influence, fraud and elder abuse. They also assert that Decedent lacked capacity to execute the trust.

On November 12, 2025, after a successful motion to amend, Petitioners filed an amended petition (“FAP”)¹ in which they also seek to invalidate an alleged “amendment” to the trust in the form of a letter from Decedent dated January 20, 2019.

On May 28, 2025, Respondents filed a response and objection to the FAP (“Objection”).

On October 20, 2025, Petitioners filed a petition to disinherit Respondents pursuant to the no contest clause in the original trust (“No Contest Petition”) based on the content of Respondents’ Objection.

On March 30, 2026, the court heard Respondents’ anti-SLAPP motion. The court entertained oral argument and took the matter under submission. On April 1, 2026, the court issued a written order granting the anti-SLAPP motion and finding Respondents to be the prevailing parties on the motion.

On May 29, 2026, Petitioners filed a notice of appeal challenging the April 1, 2026 order.

Currently before the court is Respondents’ motion for attorney fees brought as the prevailing party on their anti-SLAPP motion. The motion is unopposed.

DISCUSSION

Respondents seeks to recover a total of \$30,355.50 from Petitioners under section 425.16, subdivision (c), which provides,

¹ Although the motion to amend was granted via written order on April 24, 2025 and Respondents filed their Objection on May 28, 2025, the FAP was not filed until November 12, 2025.

(1) Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs. If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5.

(2) A defendant who prevails on a special motion to strike in an action subject to paragraph (1) shall not be entitled to attorney's fees and costs if that cause of action is brought pursuant to Section 11130, 11130.3, 54960, or 54960.1 of the Government Code, or pursuant to Chapter 2 (commencing with Section 7923.100) of Part 4 of Division 10 of Title 1 of the Government Code. Nothing in this paragraph shall be construed to prevent a prevailing defendant from recovering attorney's fees and costs pursuant to Section 7923.115, 11130.5, or 54960.5 of the Government Code.

As mentioned above, the court has already determined that Respondents are the prevailing parties on their anti-SLAPP motion. Thus, Respondents are entitled to a mandatory award of fees. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131 ["under Code of Civil Procedure section 425.16, subdivision (c), any SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees"].)

Petitioners have not opposed the motion and, therefore, they provide no reason why the motion should not be granted. Notably, the court retains jurisdiction to grant the motion despite the filing of the notice of appeal. (*Nazemi v. Tseng* (1992) 5 Cal. App. 4th 1633, 1639; *Robertson v. Rodriguez* (1995) 36 Cal.App.4th 347, 360; *Carpenter v. Jack in the Box Corp.* (2007) 151 Cal.App.4th 454, 461.)

Although the court has determined that Respondents are entitled to an award of fees, the court must still determine that the fee amount is reasonable. "[A] defendant who brings a successful special motion to strike is entitled only to reasonable attorney fees, and not necessarily to the entire amount requested. [Citations]." (*Cabral v. Martins* (2009) 177 Cal.App.4th 471, 491; *Robertson v. Rodriguez* (1995) 36 Cal.App.4th 347, 361 [court must determine if fee award is reasonable].)

The court uses the lodestar method in calculating reasonable fees. To determine the lodestar figure, the starting point is the calculation of the reasonable rate for comparable legal services in the local community for non-contingent lawyers of the same type, multiplied by the reasonable number of hours spent on the motion. (*Ketchum v. Moses, supra*, 24 Cal.4th at pp. 1131-1132.)

Respondents' counsel indicates that a total of 56 hours of attorney and paralegal time were spent on the motion, for a total bill of \$20,237.00. They also request a multiplier of 1.5, bringing the total amount requested to \$30,355.50. Respondents assert that the anti-SLAPP motion involved a novel issue of applying a no contest clause to a trust amendment or subsequent instrument, which they assert was only recently addressed in the case of "*Key v. Tyler* (2024) 24 Cal.App.5th 505 [sic]" and that the motion required analysis going beyond established precedent. (Motion, p. 8:5-9.) Respondents also contend that significant skill was displayed in the drafting of the motion and that a multiplier is appropriate because there are seven Petitioners to share the costs.

The court declines to award a multiplier in this case. “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable. Nor should a fee enhancement be imposed for the purpose of punishing the losing party.” (*Ketchum v. Moses*, *supra*, 24 Cal.4th at p. 1139.) Notably, *Key v. Tyler* (2019) 34 Cal.App.5th 505 was decided in 2019 and Respondents miscited it (as “(2024) 24 Cal.App.5th 505”) in both their anti-SLAPP motion and the motion for fees.² Respondents have not established that the motion required exceptional skill or analysis such that a multiplier would be appropriate.

The motion for attorney fees and costs is GRANTED IN PART in the amount of \$20,237.00. Petitioners are ordered to pay \$20,237.00 to Respondents’ counsel within 60 days of the date of the court’s order.

CONCLUSION

The motion for attorney fees and costs is GRANTED IN PART. Petitioners are ordered to pay \$20,237.00 to Respondents’ counsel within 60 days of the date of the court’s order. Respondents are ordered to provide a proposed judgment for the court’s signature no later than July 1, 2026.

² A later appeal, relied on by Petitioners in their opposition to the anti-SLAPP motion, can be found at *Key v. Tyler* (2024) 102 Cal.App.5th 365.